trategy or measure that has been satisfactorily demonstrated not to be a defeat device.

.8 Calendar year means the period from 1 January until 31 December inclusive.

.9 Code for Implementation means the IMO Instruments Implementation Code (III Code) adopted by the Organization by resolution A.1070(28).

.10 Committee means the Marine Environment Protection Committee of the Organization.

.11 Company means the owner of the ship or any other organization or person such as the manager, or the bareboat charterer, who has assumed the responsibility for operation of the ship from the owner of the ship and who on

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Organization.

.11 Company means the owner of the ship or any other organization or person such as the manager, or the bareboat charterer, who has assumed the responsibility for operation of the ship from the owner of the ship and who on assuming such responsibility has agreed to take over all the duties and responsibilities imposed by the International Management Code for the Safe Operation of Ships and for Pollution Prevention.

.12 Continuous feeding is defined as the process whereby waste is fed into a combustion chamber without human assistance while the incinerator is in normal operating conditions with the combustion chamber operative temperature between 850°C and 1,200°C.

.13 Defeat device means a device that measures, senses or responds to operating variables (e.g. engine speed, temperature, intake pressure or any other parameter) for the purpose of activating, modulating, delaying or deactivating the operation of any component or the function of the emission control system such that the effectiveness of the emission control system is reduced under conditions encountered during normal operation, unless the use

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deactivating the operation of any component or the function of the emission control system such that the effectiveness of the emission control system is reduced under conditions encountered during normal operation, unless the use of such a device is substantially included in the applied emission certification test procedures.

.14 Electronic Record Book means a device or system, approved by the Administration, used to electronically record the required entries for discharges, transfers and other operations as required under this Annex in lieu of a hard copy record book.2

.15 Emission means any release of substances, subject to control by this Annex, from ships into the atmosphere or sea.

.16 Emission control area means an area where the adoption of special mandatory measures for emissions from ships is required to prevent, reduce and control air pollution from NO x or SOx and particulate matter or all three types of emissions and their attendant adverse impacts on human health and

the environment. Emission control areas shall include those listed in, or designated under, regulations 13 and 14 of this Annex.

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types of emissions and their attendant adverse impacts on human health and the environment. Emission control areas shall include those listed in, or designated under, regulations 13 and 14 of this Annex.

.17 Fuel oil means any fuel delivered to and intended for use on board a ship.

.18 Gas fuel means a fuel oil with a vapour pressure exceeding 0.28 MPa absolute at a temperature of 37.8°C.3

2 Refer to the Guidelines for the use of electronic record books under MARPOL (resolution MEPC.312(74)).

3 Refer to paragraph 2.2.18 of the International Code of Safety for Ships using Gases or other Low-flashpoint Fuels (IGF Code).

.19 Gross tonnage means the gross tonnage calculated in accordance with the tonnage measurement regulations contained in Annex I to the International Convention on Tonnage Measurements of Ships, 1969, or any successor Convention.

.20 In-use sample means a sample of fuel oil in use on a ship.

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tonnage measurement regulations contained in Annex I to the International Convention on Tonnage Measurements of Ships, 1969, or any successor Convention.

.20 In-use sample means a sample of fuel oil in use on a ship.

.21 Installations in relation to regulation 12 of this Annex means the installation of systems, equipment, including portable fire-extinguishing units, insulation or other material on a ship, but excludes the repair or recharge of previously installed systems, equipment, insulation or other material,